

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUCO065268: LOS ROBLES REGIONAL MEDICAL CENTER vs HERITAGE
PROVIDER NETWORK, INC., A CALIFORNIA CORPORATION, et al.
09/23/2026 in Department 40
Demurrer**

Los Robles Regional Medical Center v. Heritage Provider Network, Inc., et al.

2026CUCO065268

September 23, 2026 at 8:30 a.m.

Hon. Dennis Hayashi; Dept. 40

Motion: Plaintiff's Demurrer to Defendants' Cross-Complaint (*Opposed*)

The Court intends to rule as follows:

Plaintiff and Cross-Defendant Los Robles Regional Medical Center's demurrer to the Cross-Complaint of Heritage Provider Network, Inc. is **OVERRULED** in part and **SUSTAINED** in part with leave to amend.

Heritage's Request for Judicial Notice is **GRANTED** as to Exhibits A and B. The Court takes judicial notice of the existence and contents of those materials, but not the truth of reasonably disputable factual assertions contained therein. *Blue Cross of California v. Rouillard* (Sacramento County Super. Ct. 2014) 2014 Cal. Super. LEXIS 24438 is not binding authority, and the DMHC materials reflect the agency's stated interpretive position.

The demurrer to the First Cause of Action for Declaratory Relief (Billed Charges) is **OVERRULED**. Heritage sufficiently alleges a present controversy concerning Los Robles's alleged practice of representing its billed charges as reasonable and customary value and seeking additional reimbursement on that basis. (Cross-Compl., ¶¶ 8-11, 17-20.) Although *Long Beach Memorial Medical Center v. Kaiser Foundation Health Plan, Inc.* (2021) 71 Cal.App.5th 323, 343 raises a legitimate issue concerning the permissible breadth of prospective relief, that issue goes principally to the scope of any declaration ultimately available rather than whether an actual controversy has been pleaded. Judicial abstention likewise does not warrant dismissal on the face of the present pleading.

The demurrer to the Second Cause of Action for Declaratory Relief (Unbundling) is **OVERRULED**. Heritage alleges an existing dispute concerning Los Robles's alleged practice of separately billing services or supplies already included within other charges. (Cross-Compl., ¶¶ 12-14, 22-28.) The Court recognizes that abstention presents a substantial issue because Health and Safety Code section 1371.39 addresses unfair billing patterns, including a demonstrable and unjust pattern of unbundling. On the present pleading, however, neither the statute nor the materials judicially noticed establish that the administrative remedy is exclusive or that adjudication necessarily would require the Court to assume the DMHC's regulatory function.

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The issue may be revisited on a developed record or in determining the permissible scope of relief.

The demurrer to the Third Cause of Action under the Unfair Competition Law is SUSTAINED with leave to amend. Heritage alleges only that it “has suffered injury in fact and has lost money and property,” without factual allegations identifying the economic loss or explaining how the challenged conduct caused that loss. (Cross-Compl., ¶ 35.) Heritage has, however, identified possible additional allegations concerning administrative costs, increased reimbursement, and allegedly duplicative payments. At least some of those allegations could potentially establish the requisite economic injury. Leave to amend is therefore appropriate. The Court does not reach the parties’ remaining disputes concerning the “unlawful,” “unfair,” and “fraudulent” prongs of the UCL.

Heritage may file and serve an amended Cross-Complaint within 20 days after service of notice of this ruling.

Plaintiff and Cross-Defendant Los Robles Regional Medical Center shall give notice.